

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

**COMPLAINANT'S RESPONSE IN OPPOSITION TO RESPONDENT'S MOTION FOR
CLARIFICATION, PROTECTIVE RELIEF, AND GUIDANCE REGARDING SCOPE
OF DISCOVERY**

Complainant FormuKleen, Inc., by and through its representative, submits this Response in Opposition to Respondent Top Shipping Systems Corp.'s Motion for Clarification, Protective Relief, and Guidance Regarding Scope of Discovery.

Respondent's motion should be denied.

Respondent seeks “clarification” and “protective relief” as to Requests for Production Nos. 2 and 3. The Presiding Officer's May 21, 2026 Order denied Complainant's Motion to Compel without prejudice as to RFP Nos. 2, 3, 10, and 13. There is no order compelling production on RFP Nos. 2 and 3. There is therefore nothing to clarify and no obligation from which Respondent needs protection. Respondent's motion is a non-sequitur.

The burden Respondent describes, a review of approximately fifty-four historical shipments, is one Respondent created in its own May 20, 2026 Notice of Continued Production. Complainant did not demand it. No order requires it. Respondent cannot manufacture a

discovery burden in its own filing and then seek protective relief from it.

I. There Is No Pending Order Compelling Production Under RFP Nos. 2 and 3

Respondent's motion expressly seeks "clarification" of the scope of Requests for Production Nos. 2 and 3 and "protective relief" from any further communications review under those requests. Motion at 1, 3 (WHEREFORE ¶¶ A, B, C).

There is no order to clarify and no obligation to be protected from.

In the April 1, 2026 Order, the Presiding Officer deferred ruling on Complainant's Motion to Compel as to RFP Nos. 2, 3, 10, and 13 pending Respondent's declaration regarding searches and document storage. April 1 Order at 12, 14. In the May 21, 2026 Order, after receiving the Villena Declaration, the Presiding Officer denied Complainant's Motion to Compel without prejudice as to RFP Nos. 2, 3, 10, and 13. May 21 Order at 3, 7, 9.

The denial was not a merits rejection. The Presiding Officer expressly noted that Respondent "does not argue that these requests seek irrelevant documents, nor does Respondent argue that the requests are overly burdensome." May 21 Order at 7-8. The denial without prejudice was based on the parties' communication failures and the Presiding Officer's determination that further party-level conferral was required. The Presiding Officer specifically directed that "the parties are instructed to discuss which searches may be appropriate in order to satisfy Complainant that Respondent has made an adequate effort to locate responsive documents." May 21 Order at 8.

Respondent's motion is therefore doubly improper. First, it seeks "clarification" of an order that does not exist and "protective relief" from a compulsion obligation that does not exist.

There is no live discovery dispute on RFP Nos. 2 and 3 because there is no order requiring Respondent to do anything under those requests. Second, to the extent Respondent perceives any potential future dispute about RFP Nos. 2 and 3, the May 21 Order directed the parties to discuss appropriate searches at the party level, not to file motions seeking scope rulings. Respondent has skipped that step entirely.

A motion seeking clarification of an order that does not exist, protective relief from an obligation that does not exist, and scope rulings the governing order said should be addressed through party-level conferral, should be denied.

II. The 54-Shipment Burden Respondent Describes Is Self-Inflicted

Respondent's motion is built on the premise that Complainant is forcing a burdensome review of communications relating to approximately fifty-four historical FormuKleen shipments. Motion at 1-2. Respondent describes the burden of “manual collection and review of years of emails across multiple employee email accounts, attachments, operational correspondence, and communications involving numerous third parties.” Motion at 2.

Complainant did not demand that review. No order requires it. The fifty-four-shipment universe was created by Respondent, in Respondent's own filing.

On May 20, 2026, Respondent filed its Notice of Continued Production and Supplemental Compliance with the April 1 Order. As the May 21 Order summarizes, Respondent represented that “[u]pon further review of the April 1, 2026 Order, and in an abundance of caution, TSS is supplementing its production to encompass communications and records relating to all of Complainant's shipments managed by Respondent.” May 21 Order at 6 (quoting Notice of Continued Production at 1). Respondent's expansion of its production to

encompass all FormuKleen shipments managed by Respondent was a unilateral decision. It was not requested by Complainant. It was not ordered by the Presiding Officer.

Complainant's post-May 21 conferral with Respondent has been scoped to the two subject containers, CHSU4047424 and BSIU8431017, under RFP Nos. 4 and 7, the requests actually subject to the April 1 Order's compulsion. Complainant has not demanded a comprehensive communications review of fifty-four historical shipments. Respondent's own Exhibit A to its motion confirms this; every conferral entry concerns the two subject containers.

Respondent cannot create a discovery burden in its own filing and then seek protective relief from the burden it created. The fifty-four-shipment review Respondent describes is not before the Commission because nothing requires Respondent to perform it.

III. Respondent's Motion Is Misdirected; Respondent's Exhibit A Concerns RFP Nos. 4 and 7, Not RFP Nos. 2 and 3

Respondent's motion seeks relief concerning RFP Nos. 2 and 3. Respondent's only exhibit, however, is a conferral chain entirely concerned with RFP Nos. 4 and 7, the two subject containers, missing non-FormuKleen third-party communications, RFP No. 7 charge/payment records, redactions, and RX/Bates identification.

That mismatch is dispositive of any “impasse” Respondent claims to have reached on RFP Nos. 2 and 3. There has been no impasse on RFP Nos. 2 and 3 because the parties have not been conferring about RFP Nos. 2 and 3. Respondent's own exhibit confirms that the parties' conferral concerned the requests actually under compulsion: RFP Nos. 4 and 7.

Respondent's representation that “the parties have reached an impasse regarding the

appropriate scope of such review” under RFP Nos. 2 and 3 (Motion at 2) is not supported by Respondent's own exhibit, which shows no conferral on RFP Nos. 2 and 3 at all.

IV. Respondent's “Limited Role” Narrative Is a Merits Argument Improperly Raised in a Discovery Motion

Respondent argues that it acted only in “limited capacities, including as a notify party, customs broker, drayage coordinator, warehouse provider, cargo release agent, and storage provider,” and “did not act as the NVOCC responsible for the full scope of transportation services for any of these shipments.” Motion at 2.

That is a merits argument. Whether Respondent acted as an NVOCC in relation to the shipments at issue is the central disputed question in this proceeding. The April 1 Order specifically held that Respondent's third-party communications, routine practices, and operational conduct are relevant to that question. April 1 Order at 11. The MSJ Order specifically identified the need for discovery regarding how Respondent interacts with third parties and holds itself out. MSJ Order at 7.

Respondent cannot pre-decide the merits question discovery is supposed to inform and then use its own merits position to restrict the discovery. Respondent's “limited role” narrative is not a basis for protective relief. It is an argument that, if it has any place at all, belongs in summary judgment briefing or at hearing, not in a motion seeking to narrow discovery into the very facts that would test the argument.

V. The Motion Improperly Seeks to Revisit Scope Determinations Already Made

To the extent Respondent's motion attempts to reopen scope or relevance determinations made in the April 1 Order, those determinations have already been made and are not properly before the Presiding Officer on Respondent's motion concerning RFP Nos. 2 and 3. Respondent objected to RFP No. 4 as overly broad in opposition to Complainant's Motion to Compel. The Presiding Officer rejected that objection and found Respondent's third-party communications relevant. April 1 Order at 11.

A motion styled as one for "clarification" of RFP Nos. 2 and 3 is not the proper vehicle to relitigate scope determinations already entered as to RFP No. 4, and it is not the proper vehicle to seek prospective relief from communications review obligations Respondent imposed on itself.

VI. Respondent's Motion Is Part of a Pattern of Filings That Substitute Process for Production

Respondent's motion does not exist in isolation. Since the April 1 Order compelled production under RFP Nos. 4 and 7, Respondent has:

- Served a supplemental production that the Villena Declaration confirmed was based on a search of only two third-party email addresses;
- Relabeled discovery-conferral correspondence as "without prejudice, confidential settlement communications," a practice Complainant objected to in writing on May 6, 2026;
- Filed a Notice of Continued Production unilaterally expanding its production universe to all FormuKleen shipments, and now relies on the burden of that self-imposed expansion as the basis for the present motion;
- Sought relief under the May 14, 2026 Order's "no further extensions without good cause"

standard without making any good cause showing; and

- Filed the present motion seeking "clarification" of and "protective relief" from RFP Nos. 2 and 3, which are not under any compulsion order, while making no reference to RFP Nos. 4 and 7, which are.

The pattern is the point. Respondent has been ordered to produce documents responsive to RFP Nos. 4 and 7 since April 1, 2026. The present motion is the latest filing that substitutes procedural maneuvering for the production the April 1 Order required. The Presiding Officer should not allow Respondent to convert noncompliance with an existing order into ongoing motion practice over requests that are not even before the Commission.

VII. Requested Relief

Complainant respectfully requests that the Presiding Officer:

1. Deny Respondent's Motion for Clarification, Protective Relief, and Guidance in its entirety;
2. Hold that there is no pending order compelling production under RFP Nos. 2 and 3, and therefore no scope to clarify and no obligation from which to grant protective relief;
3. Hold that the approximately fifty-four-shipment communications review Respondent describes was created by Respondent's own May 20, 2026 Notice of Continued Production and is not required by any order of the Presiding Officer or any demand by Complainant;
4. Hold that nothing in Respondent's motion affects, delays, narrows, modifies, or excuses Respondent's existing obligations under the April 1, 2026 Order as to RFP Nos. 4 and 7, which are not before the Commission in Respondent's motion; and
5. Grant such other and further relief as the Presiding Officer deems just and proper.

Respectfully submitted,

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Date: 05/31/2026

CERTIFICATE OF SERVICE

I certify that on May 31, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

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